

		judgment in another case (# 30-2024-01404345-CL-UD-CJC) by motion under this case number. Defendant asserts that any challenge to that judgment would have to be made in relation to that case number, by a party to that action, and would regardless be untimely in 2026. Defendant also contends that Plaintiff's request for relief under Code of Civil Procedure section 473(b) is untimely; that Plaintiff's motion identifies no excusable neglect, mistake or surprise that resulted in the dismissal; and that while Plaintiff argues that the dismissal was obtained by coercion and "extrinsic" fraud, the statements made by counsel for Defendant were both legally and factually accurate. Defendant additionally asserts that even if any statement was untrue, the alleged fraud or coercion would not be grounds to vacate the dismissal because it was intrinsic to the Complaint Plaintiff dismissed. Defendant's objection to Plaintiff's "Notice of Filing Evidence in Support of Plaintiff's Claims" filed on November 7, 2025 (ROA 31, 33, 35) as lacking foundation is SUSTAINED. With regards to the earlier unlawful detainer judgment, Plaintiff provides no authority permitting this Court to vacate a judgment of another court. The court may "disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which [a party] reached the conclusion [he or she] wants [the court] to adopt." (<i>United Grand Corp. v. Malibu Hillbillies, LLC</i> (2019) 36 Cal.App.5th 142, 153 citing <i>City of Santa Maria v. Adam</i> (2012) 211 Cal.App.4th 266, 287.) Therefore, the Court DENIES Plaintiff's request that the Court vacate a judgment entered in an unlawful detainer action. In addition, on September 19, 2024, Plaintiff filed a Request for Dismissal, with prejudice, of his Complaint and the entire action of all parties and all causes of action that was entered that same date. (See ROA 21.) Plaintiff filed the instant motion to vacate dismissal on November 7, 2025, nearly 14 months after the entry of dismissal. The
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	instant motion for relief under Code of Civil Procedure section 473(b) is therefore untimely. Plaintiff seeks relief based on extrinsic fraud or duress which is not a basis for relief under Code of Civil Procedure section 473(b). This being said, "even when relief is no longer available under statutory provisions, a trial court generally retains the inherent power to vacate a default judgment or order on equitable grounds where a party establishes that the judgment or order was void for lack of due process [citation] or resulted from extrinsic fraud or mistake. [Citation.]" (<i>County of San Deigo v. Gorham</i> (2010) 186 Cal.App.4th 1215, 1228.) Here, Plaintiff provides that in July 2024, his second agent, Rick Olsen Sr. of J&R Mobile said Helms would not approve the lease unless he dropped his lawsuit, that Mr. Olsen drafted a dismissal form and required Plaintiff to meet him at the courthouse to sign it before Plaintiff could receive his check, and that Plaintiff only signed the dismissal because he was told the sale would be canceled and he would "lose the funds," and that if he did not sign the dismissal, his home would have been auctioned off and he would receive nothing. (Declaration of Cliff Hanes, ¶ 6.) Plaintiff does not demonstrate that these assertions were fraudulent, namely, that Helms did not approve the lease after the action was dismissed, and Plaintiff indicates that he received "his check" after he signed the dismissal. The statements that sale would be canceled and he would "lose the funds," and that if he did not sign the dismissal, his home would have been auctioned off and he would receive nothing are not clearly attributable to Defendant. Additionally, even assuming the purported fraudulent statements are attributed to Defendant, including that Helms would not approve the lease unless Plaintiff dropped the lawsuit, and/or that the sale would be cancelled and Plaintiff would "lose the funds" if Plaintiff did not sign the dismissal, and/or that Plaintiff's home would be auctioned off and he would receive nothing, are intrinsic as the alleged fraud goes to the merits of
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		Plaintiff's claims for illegal seizure of property and his right to the home and ability to sell the home which were at issue in the Complaint. Further, Plaintiff does not show a meritorious case or diligence in seeking to set aside or vacate the dismissal after Plaintiff filed the request for dismissal nearly 14 months before the instant motion to vacate was filed. Based on the foregoing, Plaintiff's motion to vacate the dismissal is DENIED. <i>Defendant to give notice.</i>
102	Rodriguez vs. Saddleback Park Villas Condominium Association, Inc., 25-01503635	The motion by Plaintiff Juan Manual Rodriguez to Set Aside Dismissal is GRANTED. Here, Plaintiff contends the dismissal of the entire action was the result of a clerical mistake. On or about August 27, 2025, Plaintiff's counsel's filed a Request for Dismissal (Judicial Council Form CIV-110), which was intended to dismiss only Defendant Rafael Romero and Defendant Elizabeth Serrano. (Langley Decl. ¶ 2; see also ROA 11.) Section 1 of the Request for Dismissal states: "TO THE CLERK: Please dismiss this action as follows:" and provides several options that may be checked. (See ROA 11.) Plaintiff's Request for Dismissal marked the checkbox next to "Complaint" and the checkbox next to "Other", specifying "RAFAEL ROMERO, an individual and ELIZABETH SERRANO, an individual only". (Id.) The court clerk marked the checkbox that the "Dismissal was entered as requested on (date): 08/27/2025." (ROA 11.) A dismissal of the entire action was entered on September 17, 2025. (Langley Decl. ¶ 5.) Plaintiff's counsel did not intend to dismiss the entire case and contends that the Court's record does not reflect Plaintiff's intent. The court notes that there is no entry in the docket reflecting that the dismissal of the entire action was entered on 9/17/2025. The court finds that the 8/27/2025 dismissal was entered as the result of a clerical error that was facilitated by Plaintiff's ambiguous Request for Dismissal. As such, the motion is